

1801. Public Disclosure of Private Facts

[Name of plaintiff] **claims that** *[name of defendant]* **violated** *[his/her/nonbinary pronoun]* **right to privacy. To establish this claim, *[name of plaintiff]* must prove all of the following:**

- 1. That *[name of defendant]* publicized private information concerning *[name of plaintiff]*;**
- 2. That a reasonable person in *[name of plaintiff]*'s position would consider the publicity highly offensive;**
- 3. That *[name of defendant]* knew, or acted with reckless disregard of the fact, that a reasonable person in *[name of plaintiff]*'s position would consider the publicity highly offensive;**
- 4. That the private information was not of legitimate public concern [or did not have a substantial connection to a matter of legitimate public concern];**
- 5. That *[name of plaintiff]* was harmed; and**
- 6. That *[name of defendant]*'s conduct was a substantial factor in causing *[name of plaintiff]*'s harm.**

In deciding whether the information was a matter of legitimate public concern, you should consider, among other factors, the following:

- (a) The social value of the information;**
- (b) The extent of the intrusion into *[name of plaintiff]*'s privacy; [and]**
- (c) Whether *[name of plaintiff]* consented to the publicity explicitly or by voluntarily seeking public attention or a public office; [and]**
- (d) *[Insert other applicable factor]*.**

[In deciding whether *[name of defendant]* publicized the information, you should determine whether it was made public either by communicating it to the public at large or to so many people that the information was substantially certain to become public knowledge.]

New September 2003

Directions for Use

If the plaintiff is asserting more than one privacy right, give an introductory instruction stating that a person's right to privacy can be violated in more than one way and listing the legal theories under which the plaintiff is suing.

Comment (a) to Restatement Second of Torts, section 652D states that "publicity" "means that the matter is made public, by communicating it to the public at large,

or to so many persons that the matter must be regarded as substantially certain to become one of public knowledge.” This point has been placed in brackets because it may not be an issue in every case.

Sources and Authority

- “[T]he allegations involve a public disclosure of private facts. The elements of this tort are ‘“(1) public disclosure (2) of a private fact (3) which would be offensive and objectionable to the reasonable person and (4) which is not of legitimate public concern.”’ The absence of any one of these elements is a complete bar to liability.” (*Moreno v. Hanford Sentinel, Inc.* (2009) 172 Cal.App.4th 1125, 1129–1130 [91 Cal.Rptr.3d 858], internal citations omitted.)
- “California common law has generally followed Prosser’s classification of privacy interests as embodied in the Restatement.” (*Hill v. National Collegiate Athletic Assn.* (1994) 7 Cal.4th 1, 24 [26 Cal.Rptr.2d 834, 865 P.2d 633], internal citation omitted.)
- “Generally speaking, matter which is already in the public domain is not private, and its publication is protected.” (*Diaz v. Oakland Tribune* (1983) 139 Cal.App.3d 118, 131 [188 Cal.Rptr. 762], internal citations omitted.) “[M]atter which was once of public record may be protected as private facts where disclosure of that information would not be newsworthy.” (*Id.* at p. 132.)
- “[W]e find it reasonable to require a plaintiff to prove, in each case, that the publisher invaded his privacy with reckless disregard for the fact that reasonable men would find the invasion highly offensive.” (*Briscoe v. Reader’s Digest Assn., Inc.* (1971) 4 Cal.3d 529, 542–543 [93 Cal.Rptr. 866, 483 P.2d 34].)
- “If a jury finds that a publication discloses private facts which are ‘highly offensive and injurious to the reasonable man’ [citation] then it would *inter alia* also satisfy the reckless disregard requirement.” (*Johnson v. Harcourt, Brace, Jovanovich, Inc.* (1974) 43 Cal.App.3d 880, 891, fn. 11 [118 Cal.Rptr. 370].)
- “*Diaz* . . . expressly makes the lack of newsworthiness part of the plaintiff’s case in a private facts action. . . . We therefore agree with defendants that under California common law the dissemination of truthful, newsworthy material is not actionable as a publication of private facts.” (*Shulman v. Group W Productions, Inc.* (1998) 18 Cal.4th 200, 215 [74 Cal.Rptr.2d 843, 955 P.2d 469], internal citations omitted.)
- “In analyzing the element of newsworthiness, appellate decisions ‘balance[] the public’s right to know against the plaintiff’s privacy interest by drawing a protective line at the point the material revealed ceases to have any substantial connection to the subject matter of the newsworthy report.’ ” (*Jackson v. Mayweather* (2017) 10 Cal.App.5th 1240, 1257 [217 Cal.Rptr.3d 234].)
- “‘[N]ewsworthiness is not limited to “news” in the narrow sense of reports of current events. “It extends also to the use of names, likenesses or facts in giving information to the public for purposes of education, amusement or enlightenment, when the public may reasonably be expected to have a legitimate

interest in what is published” ’ ’ (*Jackson, supra*, 10 Cal.App.5th at p. 1257.)

- “[T]here is a public interest which attaches to people who by their accomplishments, mode of living, professional standing or calling, create a legitimate and widespread attention to their activities. Certainly, the accomplishments and way of life of those who have achieved a marked reputation or notoriety by appearing before the public such as actors and actresses [and] professional athletes, . . . may legitimately be mentioned and discussed in print or on radio or television. Such public figures have to some extent lost the right of privacy, and it is proper to go further in dealing with their lives and public activities than with those of entirely private persons.” (*Jackson, supra*, 10 Cal.App.5th at pp. 1257–1258.)
- “In the matter before us, however, there is no indication that any issue of public interest or freedom of the press was involved. ‘ “In determining what is a matter of legitimate public interest, account must be taken of the customs and conventions of the community; and in the last analysis what is proper becomes a matter of the community mores. The line is to be drawn when the publicity ceases to be the giving of information to which the public is entitled, and becomes a morbid and sensational prying into private lives for its own sake, with which a reasonable member of the public, with decent standards, would say that he had no concern.” ’ Put another way, morbid and sensational eavesdropping or gossip ‘serves no legitimate public interest and is not deserving of protection. [Citations.]’ ” (*Catsouras v. Department of California Highway Patrol* (2010) 181 Cal.App.4th 856, 874 [104 Cal.Rptr.3d 352], internal citation omitted.)
- “Almost any truthful commentary on public officials or public affairs, no matter how serious the invasion of privacy, will be privileged.” (*Briscoe, supra*, 4 Cal.3d at p. 535, fn. 5.)
- “We have previously set forth criteria for determining whether an incident is newsworthy. We consider ‘[1] the social value of the facts published, [2] the depth of the article’s intrusion into ostensibly private affairs, and [3] the extent to which the party voluntarily acceded to a position of public notoriety.’ ” (*Briscoe, supra*, 4 Cal.3d at p. 541, internal citations omitted.)
- “[T]he right of privacy is purely personal. It cannot be asserted by anyone other than the person whose privacy has been invaded.” (*Moreno, supra*, 172 Cal.App.4th at p. 1131.)
- “[L]imiting liability for public disclosure of private facts to those recorded in a writing is contrary to the tort’s purpose, which has been since its inception to allow a person to control the kind of information about himself made available to the public—in essence, to define his public persona. While this restriction may have made sense in the 1890’s—when no one dreamed of talk radio or confessional television—it certainly makes no sense now. Private facts can be just as widely disclosed—if not more so—through oral media as through written ones. To allow a plaintiff redress for one kind of disclosure but not the other,

when both can be equally damaging to privacy, is a rule better suited to an era when the town crier was the principal purveyor of news. It is long past time to discard this outmoded rule.” (*Ignat v. Yum! Brands, Inc.* (2013) 214 Cal.App.4th 808, 819 [154 Cal.Rptr.3d 275], internal citations omitted.)

Secondary Sources

5 Witkin, Summary of California Law (11th ed. 2017) Torts, §§ 772–775

4 Levy et al., California Torts, Ch. 46, *Invasion of Privacy*, § 46.03 (Matthew Bender)

37 California Forms of Pleading and Practice, Ch. 429, *Privacy*, § 429.32 (Matthew Bender)

18 California Points and Authorities, Ch. 184, *Privacy: Invasion of Privacy*, § 184.20 (Matthew Bender)

California Civil Practice: Torts §§ 20:1–20:2 (Thomson Reuters)

1802. False Light

[Name of plaintiff] **claims that** [name of defendant] **violated** [his/her/nonbinary pronoun] **right to privacy. To establish this claim, [name of plaintiff] must prove all of the following:**

1. **That [name of defendant] publicly disclosed information or material that showed [name of plaintiff] in a false light;**
2. **That the false light created by the disclosure would be highly offensive to a reasonable person in [name of plaintiff]’s position;**
3. **[That there is clear and convincing evidence that [name of defendant] knew the disclosure would create a false impression about [name of plaintiff] or acted with reckless disregard for the truth;]**

[or]

[That [name of defendant] was negligent in determining the truth of the information or whether a false impression would be created by its disclosure;]

4. **[That [name of plaintiff] was harmed; and]**

[or]

[That [name of plaintiff] sustained harm to [his/her/nonbinary pronoun] property, business, profession, or occupation [including money spent as a result of the statement(s)]; and]

5. **That [name of defendant]’s conduct was a substantial factor in causing [name of plaintiff]’s harm.**

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Directions for Use

If the plaintiff is asserting more than one privacy right, give an introductory instruction stating that a person’s right to privacy can be violated in more than one way and listing the legal theories under which the plaintiff is suing.

False light claims are subject to the same constitutional protections that apply to defamation claims. (*Briscoe v. Reader’s Digest Assn.* (1971) 4 Cal.3d 529, 543 [93 Cal.Rptr. 866, 483 P.2d 34], overruled on other grounds in *Gates v. Discovery Communications, Inc.* (2004) 34 Cal.4th 679, 696, fn. 9 [21 Cal.Rptr.3d 663, 101 P.3d 552] [false light claim should meet the same requirements of a libel claim, including proof of malice when required].) Thus, a knowing violation of or reckless disregard for the plaintiff’s rights is required if the plaintiff is a public figure. (See *Brown v. Kelly Broadcasting Co.* (1989) 48 Cal.3d 711, 721–722 [257 Cal.Rptr. 708,

771 P.2d 406].) Give the first option for element 3 if the disclosure involves a public figure. Give the second option for a private citizen, at least with regard to a matter of private concern. (See *id.* at p. 742 [private person need prove only negligence rather than malice to recover for defamation].)

There is perhaps some question as to which option for element 3 to give for a private person if the matter is one of public concern. For defamation, a private figure plaintiff must prove malice to recover presumed and punitive damages for a matter of public concern, but not to recover for damages to reputation. (*Khawar v. Globe Internat.* (1998) 19 Cal.4th 254, 273–274 [79 Cal.Rptr.2d 178, 965 P.2d 696].) No case has been found that provides for presumed damages for a false light violation. Therefore, the court will need to decide whether proof of malice is required from a private plaintiff even though the matter may be one of public concern.

If the jury will also be instructed on defamation, an instruction on false light would be superfluous and therefore need not be given. (See *Eisenberg v. Alameda Newspapers* (1999) 74 Cal.App.4th 1359, 1385, fn. 13 [88 Cal.Rptr.2d 802]; see also *Briscoe, supra*, 4 Cal.3d at p. 543.) For defamation, utterance of a defamatory statement to a single third person constitutes sufficient publication. (*Cunningham v. Simpson* (1969) 1 Cal.3d 301, 307 [81 Cal.Rptr. 855, 461 P.2d 39]; but see *Warfield v. Peninsula Golf & Country Club* (1989) 214 Cal.App.3d 646, 660 [262 Cal.Rptr. 890] [false light case holding that “account” published in defendant’s membership newsletter does not meet threshold allegation of a general public disclosure].)

Sources and Authority

- “‘False light is a species of invasion of privacy, based on publicity that places a plaintiff before the public in a false light that would be highly offensive to a reasonable person, and where the defendant knew or acted in reckless disregard as to the falsity of the publicized matter and the false light in which the plaintiff would be placed.’” (*Jackson v. Mayweather* (2017) 10 Cal.App.5th 1240, 1264 [217 Cal.Rptr.3d 234].)
- “A ‘false light’ claim, like libel, exposes a person to hatred, contempt, ridicule, or obloquy and assumes the audience will recognize it as such.” (*De Havilland v. FX Networks, LLC* (2018) 21 Cal.App.5th 845, 865 [230 Cal.Rptr.3d 625].)
- “California common law has generally followed Prosser’s classification of privacy interests as embodied in the Restatement.” (*Hill v. National Collegiate Athletic Assn.* (1994) 7 Cal.4th 1, 24 [26 Cal.Rptr.2d 834, 865 P.2d 633], internal citation omitted.)
- “In order to be actionable, the false light in which the plaintiff is placed must be highly offensive to a reasonable person. Although it is not necessary that the plaintiff be defamed, publicity placing one in a highly offensive false light will in most cases be defamatory as well.” (*Fellows v. National Enquirer* (1986) 42 Cal.3d 234, 238–239 [228 Cal.Rptr. 215, 721 P.2d 97], internal citation omitted.)
- “When a false light claim is coupled with a defamation claim, the false light

claim is essentially superfluous, and stands or falls on whether it meets the same requirements as the defamation cause of action.” (*Eisenberg, supra*, 74 Cal.App.4th at p. 1385, fn. 13, internal citations omitted.)

- “[A] ‘false light’ cause of action ‘is in substance equivalent to . . . [a] libel claim, and should meet the same requirements of the libel claim . . . including proof of malice and fulfillment of the requirements of [the retraction statute] section 48a [of the Civil Code].” ’ ” (*Briscoe, supra*, 4 Cal.3d at p. 543, internal citation omitted.)
- “Because in this defamation action [plaintiff] is a private figure plaintiff, he was required to prove only negligence, and not actual malice, to recover damages for actual injury to his reputation. But [plaintiff] was required to prove actual malice to recover punitive or presumed damages . . .” (*Khawar, supra*, 19 Cal.4th at p. 274.)
- “To defeat [defendant]’s anti-SLAPP motion on her false light claim, [plaintiff], as a public figure, must demonstrate a reasonable probability she can prove [defendant] broadcast statements that are (1) assertions of fact, (2) actually false or create a false impression about her, (3) highly offensive to a reasonable person or defamatory, and (4) made with actual malice.” (*De Havilland, supra*, 21 Cal.App.5th at p. 865.)
- “[Plaintiff] does not dispute that she is a public figure. . . . Accordingly, the Constitution requires [plaintiff] to prove by clear and convincing evidence that [defendant] ‘knew the [docudrama] would create a false impression about [her] or acted with reckless disregard for the truth.’ ” (CACI No. 1802.)” (*De Havilland, supra*, 21 Cal.App.5th at p. 869.)
- “Publishing a fictitious work about a real person cannot mean the author, by virtue of writing fiction, has acted with actual malice.” (*De Havilland, supra*, 21 Cal.App.5th at p. 869.)
- “[I]n cases where the claimed highly offensive or defamatory aspect of the portrayal is implied, courts have required plaintiffs to show that the defendant ‘intended to convey the defamatory impression.’ ” [Plaintiff] must demonstrate ‘that [defendant] either deliberately cast [her] statements in an equivocal fashion in the hope of insinuating a defamatory import to the reader, or that [it] knew or acted in reckless disregard of whether [its] words would be interpreted by the average reader as defamatory statements of fact.’ Moreover, because actual malice is a ‘deliberately subjective’ test, liability cannot be imposed for an implication that merely ‘ “should have been foreseen.” ’ ” (*De Havilland, supra*, 21 Cal.App.5th at pp. 869–870, internal citations omitted.)
- “The *New York Times* decision defined a zone of constitutional protection within which one could publish concerning a public figure without fear of liability. That constitutional protection does not depend on the label given the stated cause of action; it bars not only actions for defamation, but also claims for invasion of privacy.” (*Reader’s Digest Assn., Inc. v. Superior Court* (1984) 37 Cal.3d 244, 265 [208 Cal.Rptr. 137, 690 P.2d 610], internal citations omitted.)

- “[T]he constitutional protections for speech and press preclude the application of the New York statute to redress false reports of matters of public interest in the absence of proof that the defendant published the report with knowledge of its falsity or in reckless disregard of the truth.” (*Time, Inc. v. Hill* (1967) 385 U.S. 374, 387–388 [87 S.Ct. 534, 17 L.Ed.2d 456].)
- “We hold that whenever a claim for false light invasion of privacy is based on language that is defamatory within the meaning of section 45a, pleading and proof of special damages are required.” (*Fellows, supra*, 42 Cal.3d at p. 251.)

Secondary Sources

5 Witkin, Summary of California Law (11th ed. 2017) Torts, §§ 781–783

4 Levy et al., California Torts, Ch. 46, *Invasion of Privacy*, § 46.04 (Matthew Bender)

37 California Forms of Pleading and Practice, Ch. 429, *Privacy*, § 429.33 (Matthew Bender)

18 California Points and Authorities, Ch. 184, *Privacy: Invasion of Privacy*, § 184.21 (Matthew Bender)

California Civil Practice: Torts §§ 20:12–20:15 (Thomson Reuters)